



THE VOICE EXPRESS

The Truth Takes Time.

THE VOICE EXPRESS GAZETTE

POLITICS

The Legal Crusader: Unveiling the PIL Journey of Surjit Singh Yadav

A profile of Surjit Singh Yadav — president of Hindu Sena and the petitioner behind the PIL seeking Arvind Kejriwal's removal as Delhi CM — whose long and eclectic history of Public Interest Litigations reveals a consistent pattern of weaponising the courts for politically motivated ends.

BY MOULI SHARMA

12 APRIL 2024 · 13 MIN READ



ABOUT

The Voice Express

The Truth Takes Time.

EDITOR IN CHIEF

Mouli

WEB DEVELOPER

Mitali (Aayat Mahnoor)

CONTACT

thevoiceexpress@proton.me

WEBSITE

<https://thevoiceexpress.in>

LOCATION

New Delhi, India

INDEPENDENT • VOLUNTEER-RUN

VOL. 18 • EST. 2022

© 2026

“Having heard the counsel for the petitioner and having perused the paper-book, this court is of the view that there is no scope for judicial interference in the present matter. This court in writ jurisdiction cannot remove or dismiss Respondent No. 4 (Kejriwal) from the post of Chief Minister of the Government of NCT of Delhi or declare breakdown of constitutional machinery in the state. It is for the other organs of the state to examine the said aspect in accordance with law.”

“The courts exercising their power of judicial review found to their dismay that the poorest of the poor, the depraved (sic), the illiterate, the urban and rural unorganized labour sector, women, children, those handicapped by "ignorance, indigence and illiteracy and other downtrodden persons have either no access to justice or had been denied justice. A new branch of proceedings known as "social action litigation" or "public interest litigation" was evolved with a view to render complete justice to the aforementioned classes of persons. It expanded its wings in course of time. The courts in pro bono publico granted relief to inmates of prisons, provided legal aid, directed speedy trials, maintenance of human dignity and covered several other areas.” (Supreme Court in Guruvayoor Devaswom Managing Committee and Anr. vs. C.K. Rajan and Ors., (2003) 7 SCC 546)

The petitioner behind the PIL to remove Arvind Kejriwal from the post of Delhi CM makes a unique hobby out of Public Interest Litigations, and his legal portfolio paints quite the picture.

New Delhi, 30th March 2024: Recently, a PIL was filed before the Delhi High Court seeking the removal of Arvind Kejriwal from the post of Chief Minister of Delhi in light of his arrest by the Enforcement Directorate in the liquor policy case.*[Surjit Singh Yadav v Union of India and Ors]*. The plea was rejected by the Delhi HC stating that it fell outside the scope of judicial interference. However, it brought attention to an avid petitioner Surjit Singh Yadav who appears to have a long history of filing various and ridiculous Public Interest Litigations in the past.

Who is Surjit Singh Yadav?

The president of 'Hindu Sena'^[1] (as per his LinkedIn profile), Yadav is a self-proclaimed farmer and social worker who has been actively involved in filing PILs that seek to address various legal matters, all of which follow a distinct pattern of weaponising the law to achieve frivolous ends in the name of addressing issues of public interest and accountability. In this legal profile, we delve into some of Yadav's most prominent Public Interest Litigations (PILs).

Surjit Singh Yadav's organisation, the Hindu Sena, also has a long-standing history of run-ins with the law, of both violating and utilising it (see: Hindu Sena says it vandalised signboard outside US embassy, 1 arrested | Delhi News - The Indian Express^[2] and Hindu Sena moves SC seeking action for hate speeches against Sanatan Dharma^[3]). A pseudo-terrorist fringe group, it frequently invails the law and moves court to protect the sanctity of the Hindu religion. Much of Yadav's petitionary concern mirrors this, illustrating his trivialisation of the judicial system as well as his recurring demands of it to advance his own personal political agendas.

The Kejriwal Petition

Yadav's recent PIL sought to restrain Chief Minister Arvind Kejriwal from issuing orders while in police custody of the Directorate of Enforcement (ED) and also requested not to provide typist or computer facilities to Kejriwal during this time. Through Advocates Shashi Ranjan Kumar Singh and Mahesh Kumar, the petitioner further stated that Arvind Kejriwal, while issuing directions and orders in custody, is breaching his oath of secrecy administered to him under the Third Schedule of the Constitution of India. The PIL appears to address concerns regarding governance and accountability in Delhi's administration.

Yadav moved the court through a writ petition under Article 226, requesting a Quo Warranto against Kejriwal to clarify his authority as CM. He contended that the Government of the National Capital Territory of Delhi Rules, 1993, empowers the CM to request files from any department, and highlighted that if Kejriwal remains CM, he could demand investigations into files where he is implicated. The plea was rejected by the High Court.

A division bench of Acting Chief Justice Manmohan and Justice Manmeet Pritam Singh Arora^[4] said:

“Having heard the counsel for the petitioner and having perused the paper-book, this court is of the view that there is no scope for judicial interference in the present matter. This court in writ jurisdiction cannot remove or dismiss Respondent No. 4 (Kejriwal) from the post of Chief Minister of the Government of NCT of Delhi^[5] or declare breakdown of constitutional machinery in the state. It is for the other organs of the state to examine the said aspect in accordance with law.”

But what’s interesting is this is not the first time that a court has had to explain the jurisdiction of the judiciary to Mr. Yadav, and it likely won’t be the last. (Update, 1st April 2024: The very next day after this article was written, another petition by Yadav was presented in the Delhi High Court).

How Many PILs Has Surjit Singh Yadav Filed?

Though the petition led to little consequence other than bringing Yadav's name back to media attention, it is noteworthy that this is not the first PIL he has filed, or second, (or third).

As per judicial records between 2022 and 2024, Yadav has filed at least *six* (Update, 1st April 2024: now seven) PILs in two years, and three in the past two weeks alone, on March 20th, 28th, and the 1st of April. All three of these petitions, filed after the enforcement of the code of conduct^[6], have raised allegations against political parties; notably opposition parties to the current BJP-led government.

All of Yadav’s petitions have been presented in Higher Courts and dismissed, either on grounds of baselessness and irrelevance or withdrawn in response to questioning. (Edit, 1st April 2024: As of one day after the writing of this article, this is no longer true. Yadav’s second Petition for the dismissal of Kejriwal has been forwarded to the special district court that will hear the ED’s case against the CM before being disposed of.)

This article will detail two of these three recent PILs, along with another controversial one from last year.

Why Does it Matter That They Are ‘PIL’s?

It is important to note here that filing a PIL is not quite the same as filing any other ordinary lawsuit. As the Delhi High Court reminded Yadav’s counsel during the hearing of his first PIL hearing this year -

"The courts exercising their power of judicial review found to their dismay that the poorest of the poor, the depraved (sic), the illiterate, the urban and rural unorganized labour sector, women, children, those handicapped by "ignorance, indigence and illiteracy and other downtrodden persons have either no access to justice or had been denied justice. A new branch of proceedings known as "social action litigation" or "public interest litigation" was evolved with a view to render complete justice to the aforementioned classes of persons. It expanded its wings in course of time. The courts in pro bono publico granted relief to inmates of prisons, provided legal aid, directed speedy trials, maintenance of human dignity and covered several other areas." (Supreme Court in Guruvayoor Devaswom Managing Committee and Anr. vs. C.K. Rajan and Ors.¹⁷¹, (2003) 7 SCC 546)

Courts not only bear the cost of PIL's but fast track them, prioritising them over other cases clogging India's judicial system, relaxing legal restrictions, & hearing them directly in High Courts & the Supreme Court, because this is the only way that the downtrodden in our society can receive justice.

Among the many matters that Surjit Singh Yadav has been habitually making use of this tool of social justice for, have been cases defending corporations & industrialists alleged to have received loan waivers from the central government, questioning whether the Taj Mahal was really built by the Mughals, & trying to prevent an arrested politician from accessing stationary.

The following sections expand on each of these cases in further detail.

The Taj Mahal Story

In November 2023, a plea put forth by Surjit Singh Yadav asserted that the 17th-century monument, Taj Mahal, was originally the residence of Raja Man Singh, later refurbished by the Mughal Emperor Shah Jahan. The court observed that Mr. Yadav had previously submitted a similar plea to the Supreme Court, which was withdrawn after he suggested providing a representation to the ASI back in December 2022.

In his plea, first called to hearing in the Supreme Court in November 2022, Yadav had claimed that as per his research, a mansion already existed at the site where the Taj Mahal is built. And argued that the apparent absence of a named architect for the mausoleum in historic documents 'quite clearly indicates that the mansion of Raja Man Singh was not demolished but only modified and renovated to create the current look of the Taj Mahal.'

"He has certainly brought out many historical facts that are very interesting." Additional Solicitor General (ASG) Chetan Sharma stated, appearing for the Center.

The apex court declined to consider the plea, emphasising that PILs should not be used for speculative inquiries and that courts are not in place to revisit historical matters, & clearly concluded the matter with, “No further adjournment shall be granted on any ground.” Yadav then sought permission to withdraw his plea and make a representation before the Archaeological Survey of India, which was granted in December. (*Case Title: Surjit Singh Yadav v. UOI and Ors.*)

Yadav looked for explicit mandates from the Archeological Survey of India (ASI), the Focal government, the Public Files of India, and the Uttar Pradesh government. In his request, Yadav claimed that he has led broad exploration of the Taj Mahal and demanded the expulsion of ‘verifiable errors’ concerning the development of the Taj Mahal from reading material and asked the ASI to lead an examination concerning the age of the construction and the presence of Raja Man Singh’s royal residence. He also contended that different books about the Taj Mahal contain clashing data, for example, one book recommending that Shah Jahan’s better half was Aliya Begum without any notice of Mumtaz Mahal.

But it didn’t end there. Yadav filed another petition next year in November 2023, after making this representation to ASI, this time in the Delhi High Court, despite having received no validating response from the research organisation, & receiving clear instruction from the Supreme Court regarding the scope of judicial interference (or lack thereof). The petition was dismissed immediately.

“4. Learned ASG has fairly stated before this Court once a representation is preferred, the Archaeological Survey of India will look into it.

5. In the light of aforesaid, no further orders are required to be passed in the present PIL as the petitioner has already submitted a representation in the matter. The same stands disposed of accordingly.” (Surjit Singh Yadav vs Union Of India And Ors on 3 November 2023)

The Curious Case of Corporate Concern

On 20th March 2024, another recent PIL filed by Surjit Singh Yadav aimed to initiate an investigation and legal action against Congress leader Rahul Gandhi, Delhi Chief Minister Arvind Kejriwal and President of Samajwadi Party, Akhilesh Yadav. The crux of the allegation is that the individuals have purportedly made misleading or false statements regarding the waiver of loans for industrialists, thus tarnishing the reputation of the central government as well as the nation. The High Court, however, stated that the industrialists and the individuals who are alleged to have been defamed had the means and resources to approach the court and file appropriate proceedings, by themselves.

During the hearing, Acting Chief Justice Manmohan told Yadav's counsel: "If people or industrialists are aggrieved, they will take action. How can we interfere in this? Don't underestimate the wisdom of voters. Don't speak their mind, please. Don't involve us in this..."

"Someone misleads, someone leads. Let the people take the call. Don't get us involved in this. If people are aggrieved, they will take action. Why should we relax the principle of locus standi to entertain the PIL?"

Furthermore, the PIL sought directives concerning political parties such as the Indian National Congress, Aam Aadmi Party, and Samajwadi Party, as well as media outlets News 24, X (formerly Twitter), and YouTube, to remove the purportedly false and misleading statements from their respective platforms.

Yadav argued that the statements were disseminated with the intention to create confusion among readers or viewers, thereby aiming to undermine the image of the Central Government.

"This court is also of the view that the principle of relaxation of locus standi is not called for in this petition. The petitioner underestimates the wisdom of the Indian voters. Accordingly, this court is of the view that no orders are called in the writ petition and the same is closed," the High Court said. (Delhi HC rejects plea seeking action against Rahul, Kejriwal, Akhilesh for 'false' statements - The Hindu^[8])

A Joke of Justice

While it would be a lot funnier to approach this story as one of human interest & oddity, the truth is Surjit's affinity for the PIL is not an individualistic quirk or just an interesting choice of hobby. The Hindu Sena, literally translating to 'Hindu Army' is not just a fringe religious group that's part & parcel of a free society. Since its inception in 2011, the 'NGO' has taken credit for acts of mass beatings, vandalism of public & private property, & if it rings a bell, held a havan for Donald Trump because he would 'defeat Islam.'^[9] The Hindu Sena is a radical fascist organisation that has displayed its capacity for violence over & over again, & the only reason it has not yet gotten classified as a terrorist front is that it bears the flag of the wrong religion. Surjit's case is not a unique one. The advocate responsible for presenting all of his petitions is the same one who presented Vishnu Gupta's - the other name publicly listed as president & founder of Hindu Sena.

In March 2022, Gupta, filed a PIL highlighting concerns regarding the offers and promises - now colloquially referred to as 'freebies' - made by political parties in the ongoing assembly elections, which the court rejected due to targeting specific political parties instead of having genuine reform suggestions. "*You have a hidden agenda. Who are you?*" asked the court.

"I am a Devotee." Replied his counsel.

So it goes.

It seems, that beyond physical violence, organisations like the Hindu Sena & the individuals that make them have turned the PIL into a weapon, corrupting a tool of social justice into one that wastes resources & time, distracts the Nation from pre-existing problems by creating new ones that didn't need solving, & in this sense inflicts far greater damage to India's democracy than any physical attack could manage; it seeks to weaken our judicial machinery, laughable case after laughable case. And the tragedy, is the courts seem to have no intention to penalise them.

In a judicial system that views acts as minor as drinking water in courtrooms as contempt, it needs to be asked why a repeated violation of PIL principles by people like Surjit Singh Yadav & Vishnu Gupta is never met with anything more than oral chidings. (Edit, 10th April 2024: The Delhi High Court has imposed a fine of Rs. 50,000 on Sandeep Kumar after receiving what is the *third* petition in 10 days on the subject of dismissing Kejriwal, which is at least a slap on the wrist, but still short of legal accountability) Are judges only offended when a woman wears short sleeves on the stand? Is it not in 'contempt of the court' to not once, not twice, but repeatedly disregard judicial direction & make, in the words of Acting Chief Justice of the Delhi HC, a mockery out of the system? (See: Delhi HC dismisses third plea for Arvind Kejriwal's removal from CM post, says costs only way to curb such pleas - Dynamite News^[10])

Evidently not. Perhaps it never was.

Chronology of Surjit Singh Yadav's Petitions

1. 2nd March 2022: Diary 6179/2022
2. 3rd March 2022: Diary 6179/2022
3. 28th November 2022: Diary 28636/2022
4. 5th December 2022: Diary 28636/2022
5. 10th May 2023: Diary 6090/2023
6. 6th September 2023: Diary 6090/2023
7. 3rd November 2023: Diary 14336/2023
8. 20th March 2024: Diary 4218/2024
9. 28th March 2024: Diary 4578/2024
10. 1st April 2024: Diary 4642/2024

Based on a report by Jia Ahuja for The Voice Express.

ABOUT THE AUTHOR



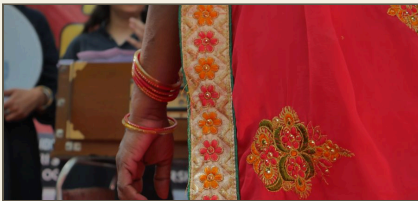
Mouli Sharma

CONTRIBUTOR

Mouli Sharma is a journalist, freelance illustrator, and writer from New Delhi, India. She is a published photojournalist & illustrator, having been featured in The Hindu College Gazette, & the quarterly Pink Disco. Mouli took over as the Editor of The Voice Express (<https://thevoiceexpress.github.io/e-mag/>) back in September 2023.

<https://thevoiceexpress.github.io/e-mag/> · [Mouli Sharma](#) · [Maktoob Media](#) · [GroundXero](#) · [The Observer Post](#) · [The Leaflet](#) · [Nivarana](#) · [The Polis Project](#) · [Article 14](#) · [Feminism in India](#) · [SabrangIndia](#) · [NewsClick](#) · [Think Global Health](#) · [Hindu College Gazette](#) · [Pink Disco](#) · [The Voice Express](#) · [The Queer Gaze](#)

MORE FROM MOULI SHARMA



Bengal Remembers: Sengar, Epstein, and RG Kar's Legacy on International Women's Day in 2026



'Matters of Money': 43 Organisations Demand India's Withdrawal From Bilateral Investment Agreement with Israel Amidst Ongoing Genocide In Gaza



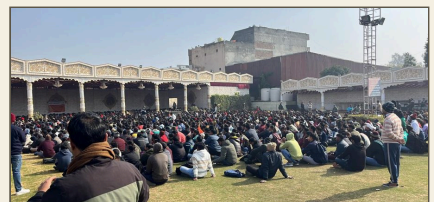
Peaceful Palestine Solidarity Demo in New Delhi Runs Into Rough Weather



'Section 144' at IMT Manesar: Police Violence Against Protesting Maruti Workers Intensifies Ahead of Tripartite Meet, Violates Court Order



"Not Your Footballs!" Newly Formed Union of Non-Permanent Maruti-Suzuki Employees Intensifies Agitation, Calls Out Abuse of Contract Workers



'Equal Work, Equal Pay': 'Temporary' Maruti-Suzuki Workers Establish Union, Join Hands With Protesting Terminated Workers

The Voice Express

The Truth Takes Time.

READER-SUPPORTED JOURNALISM



Read this article online



Support via Razorpay



Read the magazine



The Newsstand

SOURCES & REFERENCES

[1] Hindu Sena

[2] Hindu Sena says it vandalised signboard outside US embassy, 1 arrested | Delhi News - The Indian Express

[3] Hindu Sena moves SC seeking action for hate speeches against Sanatan Dharma

[4] A division bench of Acting Chief Justice Manmohan and Justice Manmeet Pritam Singh Arora

[5] Delhi

[6] code of conduct

[7] Guruvayoor Devaswom Managing Committee and Anr. vs. C.K. Rajan and Ors.

[8] Delhi HC rejects plea seeking action against Rahul, Kejriwal, Akhilesh for 'false' statements - The Hindu

[9] 'defeat Islam.'

[10] Delhi HC dismisses third plea for Arvind Kejriwal's removal from CM post, says costs only way to curb such pleas - Dynamite News